

**IN THE COURT OF PHALIT SHARMA,
ADDITIONAL SESSIONS JUDGE : GURUGRAM.
[UID : HR-0105]**

Case type	:	Criminal Misc.
Institution No.	:	12 dated 09.09.2021/ 13.09.2021.
Date of institution	:	09.09.2021.
Date of order	:	15.09.2021.

Raj Kumar Bohara son of Shri Sampatil Lal Bohara, aged about 60 years,
resident of L-89, Bhupalpura, Udaipur (Rajasthan).

.....Applicant-accused No.171

Versus

Serious Fraud Investigation Office through ShriPrashant Baliyan, Deputy
Director.

.....Respondent.

**APPLICATION SEEKING GENERAL
PERMISSION TO TRAVEL ABROAD.**

Present : Shri B.S. Motsara, counsel for the applicant-accused.
Shri Hari Kishan, Senior Public Prosecutor for the SFIO and
Shri L.S. Raghav, Special Prosecutor for the SFIO.

ORDER:

This order of mine will dispose of an application moved by
the applicant-accused No.171 Raj Kumar Bohara, seeking permission of
this court, to travel abroad.

2. In the application, it is *inter alia* alleged by the applicant-
accused No.171 that he be granted general permission to travel abroad
(Phalit Sharma)
Additional Sessions Judge,
Gurugram (UID No.HR-0105)
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with multiple entry and exit to and from India for attending his family and business with the undertaking to file his itinerary on record of this Court. He filed an anticipatory bail application No. BA-3978-2019, which was allowed vide order dated 11.08.2020, subject to furnishing bail bond in the sum of ₹1 lac with one surety in the like amount and he was further directed not to leave India without prior permission of the Court and was directed to surrender and appear before the Court on 24.09.2020. In compliance with the said order, applicant surrendered before the Court on 06.10.2020 and furnished bail bond and surety bond and also deposited his passport with the Court on 06.10.2020.

It is further alleged that after depositing his passport, applicant filed an application seeking release of his passport and permission to travel to UAE on 25.11.2020 and thereafter to Bangladesh on 08.12.2020 for carrying out his business obligations and vide order dated 23.11.2020, his application was allowed directing him to return back to India before 14.01.2021. In compliance with the conditions imposed vide order dated 23.11.2020, applicant furnished security for a sum of ₹1 crore and after that his passport was released. Thereafter, the applicant travelled to UAE and returned back to India.

It is further alleged that on the next date fixed, applicant marked his presence and he was permitted by the Court to travel Dubai

and return before the next date of hearing. The applicant returned from Dubai before 19.02.2021 and again marked his presence on 19.02.2021. Thus, the applicant has complied with each and every directions passed by the Court without any default on his part and has been travelling abroad with the permission of the Court and on each occasion, he has appeared before the Court on the date fixed.

It is further alleged that applicant is an NRI and his wife Mrs. Nita Bohra and three children also stay in Dubai, UAE. The wife of applicant is suffering from severe depression and he has to take care of his wife and minor daughter 12 years old. Moreover, UAE is also his primary place of business as he is Managing Partner of RKC International General Trading LIC, a company incorporated under the Commercial Company Act, based in UAE and engaged in business of trading/export in international market. The applicant frequently travels from India to UAE and Bangladesh in view of his ordinary business exigencies. It is further submitted that applicant is not a flight risk and there are no apprehensions of the applicant evading trial and not appearing before the Court as and when directed which is evident from the fact that the applicant has complied with the directions mentioned in order dated 23.11.2020 and returned back to India before 14.01.2021 and appeared before the Court on 15.01.2021 and 19.02.2021. Moreover, the

applicant frequently visits India once or twice a month to take care of his business ventures as well as his old mother, who is 84 years old and his widowed sister Smt. Chandra Kala Kothari, aged 64 years, who resides at the family and ancestral house at L-89, Bhupalpura, Udaipur.

In the end, it has been prayed that the applicant be permitted to travel UAE from / after 14.09.2021 in terms of the itinerary mentioned above and he may be exempted from depositing his passport on each and every date of hearing and the surety of ₹1 crore furnished by him in compliance of order dated 23.11.2020, be treated as continuing surety till further order.

3. No reply to the application has been filed by the SFIO. It is orally opposed half heartedly and it is not disputed that the applicant-accused has been granted travel permission earlier also and he has returned as per schedule.

4. Applicant-accused Raj Kumar Bohara seeks permission to travel to UAE from/after 14.09.2021 and return back to India before the next date of hearing and appear before the Court. Keeping in view the facts mentioned in the application that the applicant-accused has his family (wife and children) in UAE and he is partner in RKC International General Trading LLC, in India also, the applicant-accused has business interests as is a Chartered accountant registered with Institute of

Chartered Accountants of India and also a partner in M/s Sampati Lal Bohra and Company, he has already been granted permission to travel UAE and Dubai vide orders dated 19.01.2021 and 25.02.2021 by the Court of Dr. D.N. Bhardwaj, learned Additional Sessions Judge, Gurugram, which concession he did not misuse, this Court is inclined to accept the request so made. Hence, the applicant-accused Raj Kumar Bohara is permitted to travel UAE from / after 14.09.2021 with direction to return to India before the date fixed i.e. 23.12.2021, subject to the following terms and conditions:

- (i) That, prior to leaving the country the applicant-accused will furnish security of some immovable property/bank guarantee worth ₹One Crore in favour of this Court and in case, he misuses the concession to travel abroad, then the security amount would be forfeited to the State.
- (ii) That, applicant-accused will follow strictly his travel itinerary as communicated through application in hand.

Papers be tagged with the main case file.

Pronounced in open court.

Dated : 15.09.2021.

Rakesh SG-I

(Phalit Sharma)

Additional Sessions Judge,
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Note: Certified that this order consists of five (05) pages and each page has been checked and signed by me.

Dated : 15.09.2021.

(Phalit Sharma)

Additional Sessions Judge,
Gurugram. [UID : HR0105]

(Phalit Sharma)
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Gurugram (UID No.HR-0105)
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